



CHAPTER xci.

An Act to provide for the granting of super-
annuation allowances to the officers and
servants of the mayor aldermen and coun-
cillors of the metropolitan borough of Lambeth
and for other purposes. [4th August 1922.]

A.D. 1922.

WHEREAS the metropolitan borough of Lambeth
in the administrative county of London is a
borough constituted under the London Government
Act 1899 and is under the management and control of
the mayor aldermen and councillors of the borough
(in this Act called "the Council"):

And whereas under and by virtue of the Super-
annuation (Metropolis) Act 1866 and the London Govern-
ment Act 1899 the Council are empowered to grant
superannuation allowances or gratuities to persons who
shall have served in an established capacity as officers
of the Council:

And whereas a superannuation and thrift fund has
been formed by the Council and their predecessors (the
vestry of the parish of Lambeth) to which fund the
officers and servants of the Council have been required
to contribute and by means of that fund which together
with the amount standing to the credit of the super-
annuation sinking fund amounts to upwards of forty-two
thousand pounds and by the exercise of the powers of
the Superannuation (Metropolis) Act 1866 it has been
the custom to grant superannuation allowances to the
officers and servants of the Council upon their retirement:

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And whereas it is expedient to discontinue the said superannuation and thrift fund and to establish in lieu thereof by means of this Act a superannuation fund for granting superannuation and other allowances to the officers and servants of the Council and to make provision for the retirement of such officers and servants :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the first schedule to the Borough Funds Act 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title
and com-
mencement.

1.—(1) This Act may be cited as the Lambeth Borough Council (Superannuation) Act 1922.

(2) This Act shall except where otherwise provided come into operation as from the last day of the month in which it is passed.

Interpre-
tation.

2. In this Act unless the subject or context otherwise requires—

(1) "The Council" means the mayor aldermen and councillors of the metropolitan borough of Lambeth;

(2) "The borough" means the metropolitan borough of Lambeth;

(3) "The general rate" means the general rate of the borough;

(4) "Officer" means—

(a) Every officer servant and workman who is in the service of the Council at the commencement of this Act and who before such commencement shall have contributed to the thrift fund (in this Act referred to as an "existing officer"); and

(b) Every officer servant or workman in the service of the Council and placed upon the permanent establishment by a resolution of the Council passed or to be passed : A.D. 1922.

Provided that no officer servant or workman shall be placed upon the permanent establishment unless and until—

(i) He has attained the age of eighteen years; and

(ii) He has been examined by a duly registered medical practitioner appointed by the Council for the purpose and the Council have considered the report of such medical practitioner;

(5) "Service" means service of an officer in a whole time capacity under the Council or as regards an officer transferred to the Council from any other authority by or under the London Government Act 1899 also service under such authority:

Provided that the period during which any officer has served in His Majesty's Naval Military or Air Forces during the late war shall be reckoned as service under the Council for the purposes of this definition if such officer was in the service of the Council immediately preceding and immediately succeeding his service in such forces and shall be reckoned as service with a local authority for the purposes of the section of this Act whereof the marginal note is "Service under other authorities" if he was in the service of a local authority immediately preceding and in the service of the Council or of a local authority immediately succeeding his service in such forces;

(6) "Salary" means salary or wages and all fees poundage and other payments (including any war bonus) made to any officer as such for his own use also the money value of any apartments rations uniforms or other allowances or emoluments in kind appertaining to his office or employment but does not include any casual payments or gratuities or payments in respect of overtime made to any officer;

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- (7) "Contributor" means any officer contributing or who has contributed to the superannuation fund in accordance with the provisions of this Act;
- (8) "The superannuation fund" means a fund established under the provisions of this Act;
- (9) "The thrift fund" means the fund formed under the superannuation and thrift fund scheme inaugurated by resolution of the vestry of the parish of Lambeth passed on the twenty-eighth day of June one thousand eight hundred and ninety-seven and carried on under that resolution as amended by subsequent resolutions of the Council;
- (10) "Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;
- (11) "Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council.

Officers to
contribute.

3.—(1) Subject to the provisions of this Act every officer shall contribute annually to the superannuation

fund a percentage amount of his salary according to his age at his nearest birthday at the date of his becoming an officer as follows (namely) :— A.D. 1922.

- (a) If his age does not exceed twenty-one years three and three-quarters per centum ;
- (b) If his age exceeds twenty-one years and does not exceed twenty-three years four per centum ;
- (c) If his age exceeds twenty-three years but does not exceed twenty-six years four and a quarter per centum ;
- (d) If his age exceeds twenty-six years but does not exceed twenty-nine years four and a half per centum ;
- (e) If his age exceeds twenty-nine years but does not exceed thirty-two years four and three-quarters per centum ;
- (f) If his age exceeds thirty-two years but does not exceed thirty-five years five per centum ;
- (g) If his age exceeds thirty-five years but does not exceed thirty-seven years five and a quarter per centum ;
- (h) If his age exceeds thirty-seven years but does not exceed thirty-nine years five and a half per centum ;
- (i) If his age exceeds thirty-nine years but does not exceed forty-one years five and three-quarters per centum ;
- (j) If his age exceeds forty-one years but does not exceed forty-two years six per centum ;
- (k) If his age exceeds forty-two years such percentage amount as may be decided by an actuary to be appointed by the Council for the purpose.

(2) For the purposes of this section the age of an officer whose birthdays are equidistant from the date of his becoming an officer shall be deemed to be his age at the earlier of such birthdays.

(3) In their application to an existing officer the foregoing provisions of this section shall have effect as if his age when he first contributed to the thrift fund were substituted for his age at the date of his becoming an officer but in no case shall the percentage amount of his salary to be contributed annually by any existing officer exceed five per centum.

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(4) An officer shall not be required to contribute to the superannuation fund after he has contributed to the thrift fund and the superannuation fund or to either of those funds for forty consecutive years.

(5) The amount of any contributions to be made under this Act shall be from time to time deducted from the salary payable to the officer but such contributions shall not be calculated to fractions of one penny :

Provided that contributions in respect of emoluments (other than monetary payments) shall be made by instalments or otherwise as the Council may from time to time direct The money value of such emoluments shall be determined by the Council and shall be revised by them from time to time as they may deem necessary.

Retirement
on account
of age.

4.—(1) Where an officer has attained the age of sixty-five years he shall cease to hold his office or employment.

(2) Provided that with the consent of such officer the Council may by resolution extend his period of service for one year or any less period and so from time to time as they may deem expedient.

Title of
officers to
super-
annuation
allowances.

5.—(1) Subject to the provisions of this Act every officer who shall be a contributor to the superannuation fund and shall have completed ten years' service and—

(a) who in the opinion of the Council on the advice of a duly registered medical practitioner appointed by the Council for the purpose shall have become incapable of discharging the duties of his office with efficiency by reason of permanent infirmity of mind or body (such permanent infirmity of mind or body not being in the opinion of the Council due to his own misconduct or negligence); or

(b) who shall have attained the age of sixty years and have completed service of forty years; or

(c) who shall have attained the age of sixty-five years;

shall be entitled on resigning or otherwise ceasing to hold his office or employment to receive during life out of the superannuation fund a superannuation allowance according to the scale laid down in this Act.

(2) The Council may if they think fit grant a superannuation allowance to any officer who shall be a contributor to the superannuation fund and shall have completed ten years' service and have attained the age of sixty years and thereupon such officer shall be entitled on resigning or otherwise ceasing to hold his office or employment to receive during life out of the superannuation fund a superannuation allowance according to the scale laid down in this Act. A.D. 1922.

6.—(1) The scale for superannuation allowances shall be as follows (that is to say) :— Scale of superannuation allowance.

An annual allowance equal to one-sixtieth of the average amount of the salary of the officer entitled thereto multiplied by the number of complete years comprised in his service but in no case shall the superannuation allowance exceed forty-sixtieths of such average amount.

(2) For the purpose of this section the average amount of the salary of an officer shall be the average amount of his salary during the five years ending on the day which immediately precedes the day on which he resigns or ceases to hold his office or employment.

(3) Provided that when an officer is unable by reason of physical or mental infirmity to perform the duties for which he was appointed and is employed at a reduced salary he may contribute to the superannuation fund on the basis of the higher salary and be entitled to the superannuation allowance on that basis.

(4) Provided also that any part of a superannuation allowance which is calculated by reference to a war bonus or other similar allowance shall be calculated and liable to variation in accordance with the rules for the time being in force with respect to superannuation allowances of members of His Majesty's Civil Service.

7.—(1) Subject to the provisions of this section all periods of service by an officer (other than an officer to whom a compensation allowance has been granted under the London Government Act 1899) rendered before his appointment by the Council or their predecessors under and as an officer of any other local authority as defined in section 34 of the Local Loans Act 1875 Service under other authorities.

A.D. 1922. in a whole time capacity shall be aggregated and reckoned as part of his service for the purposes of determining the amount of his superannuation allowance under the section of this Act whereof the marginal note is "Scale of superannuation allowance" but not for the purposes of determining his right to a superannuation allowance under the section of this Act whereof the marginal note is "Title of officers to superannuation allowances."

(2) In addition to the contribution to be made under the section of this Act whereof the marginal note is "Officers to contribute" any officer who may hereafter be appointed by the Council and to whom this section applies shall pay into the superannuation fund a sum equal to the aggregate amount which he would have contributed to that fund—

(a) if he had been an officer in the service of the Council during the period of his service with such other local authority or local authorities; and

(b) if this Act had been in operation during that period.

(3) The sum payable under subsection (2) of this section shall be paid in such instalments and at such times as may be determined by the Council:

(4) Provided that—

(a) This section shall not apply to any officer in the service of the Council at the commencement of this Act who either—

(i) gives notice in writing to the Council within six months after the passing of this Act that he desires to be excluded from the operation of this section; or

(ii) fails within six months after the passing of this Act to prove to the reasonable satisfaction of the Council that he has been in the service of any such local authority as aforesaid;

(b) In case of an officer appointed subsequently to the commencement of this Act no such period of service shall be so aggregated and reckoned unless the officer declares prior to his appointment and proves to the satisfaction of the Council within a period of three months

from the date of such appointment that he has been in the service or employment of any such authority or authorities and the Council on the application of such officer in such case shall at their discretion direct whether the whole or any part of such period of service shall or shall not be so aggregated and reckoned; A.D. 1922.

- (c) No such period of service shall be so aggregated and reckoned which has been or may be reckoned for the purpose of superannuation allowances or gratuities under any other Act.

8.—(1) Subject to the provisions of this section an officer who before he is placed upon the permanent establishment has been in the temporary service of the Council may within three months after he is placed on the permanent establishment or within three months after the commencement of this Act (whichever is the later) elect to reckon the period of such service so far as it is continuous for the purposes of determining his right to a superannuation allowance under this Act and the amount of such allowance and in the event of his electing to reckon such period for those purposes the percentage amounts to be contributed by him to the superannuation fund shall be ascertained by reference to his age at the commencement of such period. Temporary service.

(2) In addition to the contributions to be made under the section of this Act whereof the marginal note is "Officers to contribute" any officer to whom this section applies shall pay into the superannuation fund a sum equal to the aggregate amount which he would have contributed to that fund if this Act had been in operation during the period of his service with the Council and if during such period he had been placed upon the permanent establishment by a resolution of the Council.

(3) The sum payable under subsection (2) of this section shall be paid in such instalments and at such times as may be determined by the Council.

9.—(1) Where for the due and efficient discharge of his duties any officer is required to possess professional or other peculiar qualifications not ordinarily to be acquired in the Council's service the Council may in the Officers having special qualifications.

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(2) Provided that—

- (a) Any officer appointed by the Council after the passing of this Act and having the benefit of the addition of a number of years as in this section mentioned shall pay or contribute annually in manner provided by this Act for such added period of ten years or part thereof an additional sum equivalent to one per centum of his annual salary ;
- (b) Nothing in this section shall entitle any such officer appointed after the passing of this Act to receive any superannuation allowance until he shall have completed ten years' service under the Council ;
- (c) This section shall not apply to any officer in respect of whom periods of service under another local authority are reckoned for determining the amount of his superannuation allowance.

Subsequent
appoint-
ments.

10.—(1) When a person in receipt of a superannuation allowance under this Act is appointed to any office or employment by the Council or by any authority where his salary shall be paid directly or indirectly out of any rate or rates or out of any public moneys such allowance shall cease to be paid so long as he continues to hold such office or employment if the salary thereof is equal to or in excess of the amount of the salary on which such allowance was based and if less then only so much of such allowance shall be paid so long as he holds such office or employment as will make up the deficiency.

(2) Any such person on ceasing to hold such office or employment shall be entitled to revert to and to receive the full amount of his original superannuation allowance.

Return of
contribu-
tions and
payment of
gratuities.

11.—(1) Any officer who has not become entitled to the superannuation allowance and who resigns his office or employment or is dismissed or in any way ceases

to hold his office or employment shall be entitled to receive out of the superannuation fund a sum equal to the amount of— A.D. 1922.

- (a) his contributions to the superannuation fund; and
- (b) his contributions (if any) to the thrift fund; and
- (c) compound interest on the amount of his contributions (if any) to the thrift fund at the rate of two and a half per centum per annum to the thirty-first day of May one thousand nine hundred and twenty-one and thereafter at the rate of three per centum per annum to the date of the commencement of this Act calculated by half-yearly rests on the thirty-first day of March and thirtieth day of September;

but if he subsequently be again appointed to be an officer his service previous to his ceasing to hold office or employment as aforesaid shall not be reckoned as or be service for the purposes or within the meaning of this Act unless upon his fresh appointment he pays to the fund the amount so received.

(2) The Council may (if they think fit) pay to an officer who is dismissed or in any other way ceases to hold his office or employment a gratuity not exceeding twice the amount of his salary during his last year of service unless (a) he voluntarily resigns or (b) he is dismissed for fraud dishonesty or misconduct or (c) he becomes entitled to a superannuation allowance.

Any payment under this subsection shall be made out of the general rate.

12.—(1) In the event of the death of an officer before becoming entitled to or receiving a superannuation allowance under the provisions of this Act the Council shall pay to his legal personal representatives out of the superannuation fund a sum equal to— Return in case of death.

- (a) the whole of the amount standing to the credit of his account in the thrift fund at the date of the commencement of this Act together with compound interest thereon at the rate of three per centum per annum as from that date calculated by half-yearly rests on the thirty-first day of March and the thirtieth day of September; and

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- (b) the amount of such officer's contributions to the superannuation fund together with the contributions made by the Council in respect of such officer but without interest thereon.

(2) In the event of the death of an officer after he has become entitled to a superannuation allowance but before he shall have received by way of allowance an amount in the aggregate equal to the amount which his legal personal representatives would have been entitled to receive under subsection (1) of this section if he had died immediately before becoming entitled to a superannuation allowance the Council shall pay to his legal personal representatives out of the superannuation fund a sum equal to the difference between such last-mentioned amount and the amount he has received by way of superannuation allowance.

Super-
annuation
fund and
Council's
contri-
bution.

13.—(1) The Council shall establish maintain and administer a superannuation fund and shall carry to the credit thereof—

- (a) All money which at the commencement of this Act is standing to the credit of the several accounts in the thrift fund and of the superannuation sinking fund;
- (b) All dividends and interest arising out of the investment or use of the superannuation fund or any part thereof;
- (c) All amounts deducted from the salaries of or paid by officers under the provisions of this Act;
- (d) An amount (hereinafter referred to as "the normal contribution") which until the thirty-first day of March one thousand nine hundred and twenty-eight shall be equal to the amounts deducted from the salaries of or paid by officers under the provisions of this Act and after that date at such rate as shall be certified by an actuary as hereinafter provided;
- (e) During the period of sixty years from the commencement of this Act the annual amount of the deficiency contribution as hereinafter provided.

(2) The amounts referred to in paragraphs (d) and (e) of subsection (1) of this section shall be provided out of the funds rates revenues or accounts out of which the salaries are paid in respect of which such contributions are made.

14. So soon as practicable after the commencement of this Act the condition of the superannuation fund shall be submitted by the Council to an actuary being a Fellow of the Institute of Actuaries or of the Faculty of Actuaries in Scotland who shall consider the same and shall make an actuarial valuation of the fund and on the basis of such valuation shall certify the amount (in this Act called "the deficiency contribution") which the Council shall contribute to the superannuation fund in addition to the normal contribution so that the superannuation fund shall be solvent (having regard to the then existing and prospective liabilities) and such deficiency contribution may be calculated so as to cast upon the Council an equal annual charge for a period of sixty years from the commencement of this Act.

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Deficiency
contribution.

15. All superannuation allowances granted by the Council before the commencement of this Act in pursuance of the Superannuation (Metropolis) Act 1866 all superannuation allowances to be paid in pursuance of this Act and all other sums payable out of the superannuation fund shall be paid by the Council out of that fund and in the event of the superannuation fund not being sufficient fully to satisfy such payments then to the extent to which the same is insufficient such payments shall be charged against the general rate.

Payments
out of
super-
annuation
fund.

16.—(1) The Council may use for the purpose of any statutory borrowing power possessed by them any money forming part of the superannuation fund and not for the time being required for payments to be made under this Act subject to the following conditions:—

Use and
investment
of super-
annuation
fund.

- (a) The money so used shall be repaid to the superannuation fund within the period by the methods and out of the fund rate revenue or account within by and out of which a loan raised under the statutory borrowing power would be repayable;
- (b) Interest shall be paid to the superannuation fund on all money so used and for the time being not repaid to the fund. Such interest shall be calculated at a rate per centum per annum to be determined by the Council and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage

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under the statutory borrowing power and shall be paid out of the fund rate revenue or account which would be applicable to the payment of interest on a loan raised under the statutory borrowing power; and

- (c) The statutory borrowing power for the purpose of which the money is so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised on mortgage in exercise of the power and the particulars of the exercise of the power by such use shall be entered accordingly in the mortgage register kept by the Council.

(2) So much of the superannuation fund as shall not be required to meet payments arising in pursuance of this Act and as shall not be used in manner provided by subsection (1) of this section shall be invested in statutory securities.

Quin-
quennial
investiga-
tion.

17.—(1) Once at least in every period of five years from the thirty-first day of March one thousand nine hundred and twenty-three the condition of the superannuation fund shall be submitted by the Council to an actuary being a Fellow of the Institute of Actuaries or of the Faculty of Actuaries in Scotland who shall consider the same and shall make an actuarial valuation of the fund and on the basis of such valuation shall certify what proportion or proportions in his opinion the normal contribution of the Council shall bear to the salaries of contributors so that the superannuation fund shall be solvent (having regard to the then existing and prospective liabilities) without further recourse to the general rate under the section of this Act whereof the marginal note is " Payments out of superannuation fund " and for the next succeeding period of five years the normal contributions shall be as so certified.

(2) Two copies of each valuation and certificate of any actuary made under the provisions of this section shall be forwarded to the Minister of Health.

Discon-
tinuance
of thrift
fund.

18. On the commencement of this Act the scheme under which the thrift fund was formed shall be discontinued and any rights of officers in respect thereof shall cease.

19. The following provisions shall have effect with respect to every sum by way of superannuation allowance return of contributions or otherwise (in this section referred to as a "grant") payable to any contributor under this Act—

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Prohibition
of assign-
ment &c. of
grants and
application
and
payment
thereof.

- (1) Every assignment or mortgage of or charge on a grant and every agreement to assign or charge a grant shall except so far as made for the benefit of the wife or dependents of the contributor be void and a grant shall not be liable to be taken in execution under process of any court and on the bankruptcy of the contributor the grant shall not pass to any trustee or other person acting on behalf of the creditors :
- (2) Where any parochial relief is given to a contributor the Council may pay the whole or any part of the grant to the guardians or other authority giving the relief and the same when so paid may be applied in repayment of any sums expended in such relief and subject thereto shall be paid or applied by the guardians or other authority to or for the benefit of the contributor or his dependents :
- (3) If any contributor neglects to maintain any person for whose maintenance he is liable the Council may in their discretion pay or apply the whole or any part of the grant to or for the benefit of that person :
- (4) If the contributor appears to the Council to be insane or otherwise incapacitated to act the Council may pay so much of the grant as the Council think fit to the institution or person having the care of the contributor and may pay the surplus (if any) or such part thereof as the Council think fit for or towards the maintenance and benefit of the wife or dependents of the contributor :
- (5) On the death of the contributor to whom a sum not exceeding one hundred pounds is due on account of a grant then if the Council so direct probate or other proof of the title of the personal representative of the deceased may be dispensed with and the sum may be paid or distributed

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to or among the persons appearing to the Council to be beneficially entitled to the personal estate of the deceased contributor or to or among any one or more of those persons and in the case of the illegitimacy of the deceased contributor to or among such persons as the Treasury may direct and the Council and any officer of the Council making the payment shall be discharged from all liability in respect of any such payment or distribution :

- (6) Any sum payable to a minor on account of a grant may be paid either to the minor or to such person and on such conditions for the benefit of the minor as to the Council seems expedient :
- (7) Where a payment is made to any person (including a minor) by the Council in pursuance of this section the receipt of that person shall be a good discharge for the sum so paid :
- (8) The Council may make rules with respect to declarations to be made for any purpose relating to grants payable by them and while any such rules so made are in force a person shall not be entitled to receive any sums in respect of a grant payable by the Council until any declaration required by those rules has been made Any person who makes a wilful misstatement of material fact in any such declaration shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment with or without hard labour for not exceeding three months.

Officers of
joint com-
mittees.

20.—(1) An officer servant or workman in the service of a joint committee appointed under Act of Parliament upon which the Council are represented shall if an agreement relative to such officer servant or workman has been entered into under subsection (2) of this section be deemed to be an officer servant or workman in the service of the Council for the purposes of this Act and service under such joint committee shall be deemed to be service under the Council.

(2) The Council on the one hand and any such joint committee and any local authority represented thereon

on the other hand may enter into and carry into effect agreements for and in relation to the contributions to be made to the superannuation fund by such joint committee or local authority in respect of the officers in the service of such joint committee and in relation to any other matters dealt with in this Act. A.D. 1922.

(3) Any sum payable by any such joint committee under an agreement made in pursuance of this section shall be paid out of the fund rate or revenue out of which the salaries of their officers are payable and any sum payable by a local authority under any such agreement shall be paid out of the fund rate or revenue out of which contributions of such local authority to the expenditure of such joint committee are payable.

(4) This section shall not apply to any officer servant or workman who is or will become entitled to a pension or to superannuation rights under any other local authority.

21. Any question which may arise as to the right or obligation of any person to contribute to the superannuation fund or as to the amount of any contribution or sum to be made to such fund or as to any right to or as to the amount of any superannuation allowance or benefit to be made or paid out of such fund to any contributor or to the legal personal representative of any contributor or to any other person under this Act shall in default of agreement be determined by an arbitrator under and in accordance with the provisions of the Arbitration Act 1889 and the arbitrator shall failing agreement be appointed by the President of the Institute of Actuaries on the application of either party. Arbitration.

22.—(1) All matters relating to the administration of the superannuation fund shall stand referred to a committee consisting of the mayor of the borough six other members of the Council appointed by them and six contributors to be elected by the contributors in accordance with the regulations made by the Council from time to time. Such regulations shall provide for the retirement annually of one-third of the members of the committee appointed by the Council and one-third of those elected by the contributors the retiring members being eligible for re-election. Managing committee.

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(2) The committee constituted under this section shall be deemed to be a committee of the Council for the purposes of section 8 of the London Government Act 1899.

Power to
contribute
to pro-
vident fund.

23.—(1) In addition to the other powers conferred upon the Council by this Act they may at their discretion contribute out of the general rate to the funds of a society registered under the Friendly Societies Act 1896 constituted exclusively from amongst their officers or some of them for the purpose of providing by contributions or subscriptions of the members of such society with the aid of donations or subscriptions from the Council and others for amongst other matters—

- (a) The relief or maintenance of the members of such society during sickness; or
- (b) The relief or maintenance of the widows and orphan children of deceased members of such society; or
- (c) Insuring the payment of money on the death of a member; or
- (d) Insuring the payment of funeral expenses of a member or the wife of a member of such society.

(2) Any such contribution by the Council may be made on such terms and conditions and subject to such restrictions and reservations as the Council think expedient.

(3) The amount of any contribution made by the Council to a society under this section shall not exceed the sum which is equivalent to an aggregate of twopence for each weekly contribution to be made to the funds of such society of not less than fourpence by the members thereof respectively.

(4) Nothing contained in this Act shall render it compulsory upon any officer to become a member of any society which may be constituted as aforesaid.

Payment of
gratuities.

24. On the termination of the service under the Council of any officer or servant who is not entitled to a superannuation allowance under this Act and whether he is an officer as defined in this Act or not the Council may if they think fit grant to him a gratuity not exceeding twice the amount of the salary or wages received by him

during the year ending on the termination of his service A.D. 1922.
Any payment under this section shall be made out of the
general rate. —

25. A copy of this Act shall be sent or delivered to every officer for the time being in the service of the Council. Act to be supplied.

26. The Superannuation (Metropolis) Act 1866 shall cease to apply to the Council in respect of any officer who shall become a contributor to the superannuation fund. Act of 1866 not to apply to contributors.

27. Nothing in this Act shall entitle the Council to any payment out of moneys provided by Parliament towards any contribution made by them to a superannuation fund. Saving in respect of Exchequer grants.

28. All the costs charges and expenses preliminary and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate. Costs of Act.

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FOR

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